

Tentative Rulings for June 10, 2026 Department 3

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 692 7358**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400413	EWELLS VS UHS-CORONA, INC.	MOTION FOR SUMMARY JUDGMENT ON CEP AMERICA-CALIFORNIA, CLAUDINE DUTARET, M.D.

Tentative Ruling:

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) A defendant can meet his initial burden by showing that on or more elements of the cause of action cannot be established, or that there is a complete defense. (CCP §437c(p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action, or show that the plaintiff lacks evidence. (*Chavez v. Glock* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claims fails as a matter of law. (*Eriksson v. Nunnick* (2011) 191 Cal.App.4th 826, 849 (applying rule to issues of duty).) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar*, supra, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence, but must show that the plaintiff cannot reasonably obtain evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

The duty owed by a medical provider is established by the standard of care followed by other medical providers in the same or similar community. "Expert evidence in a medical malpractice suit is conclusive as to the proof of the prevailing skill and learning in the locality and of the propriety of the particular conduct by the practitioner and in particular instances because such a standard and skill is not a matter of general knowledge and can only be supplied by expert testimony." (*Willard v. Hagemeister* (1991) 121 Cal.App.3d 406, 412.) Where the moving party produces competent expert opinion declarations showing that there is no triable issue of fact on an essential element of the opposing party's claim, the opposing party's burden is to produce competent expert opinion declarations to the contrary. (*Ochoa v. Pacific Gas & Elec. Co.* (1998) 61 Cal.App.4th 1480, 1487.)

Defendants present the declaration of Dr. Andersson. (Moving Lodged Evidence, Ex. N.) However, the declaration was not signed. Accordingly, the court continued the hearing to allow a signed version of the declaration to be submitted. Defendants corrected this on 5/5/26 by submitting a signed declaration.

Dr. Andersson states he is familiar with the standard of care for nurse practitioners and neurologists, along with medical groups. (Andersson Decl. ¶1.) On October 21, Reus and Dutaret (who was via tele neurology), conducted an evaluation. (Andersson Decl. ¶9.) The plan was an MRI, continue with IV methylprednisolone and neuro checks every four hours. (Andersson Decl. ¶9.) Reus reevaluated Plaintiff on October 22, and ordered a STAT cervical and thoracic spine CT scan and STAT MRI. (Andersson Decl. ¶10.) Plaintiff received a cervical spine MRI on October 22.

(Andersson Decl. ¶11.) On October 23, Reus documented Plaintiff refusing the thoracic spine MRI but complained of worsening numbness and weakness. (Andersson Decl. ¶12.) On October 24, Reus reevaluated Plaintiff and the plan was to obtain a neurosurgery and/or orthopedic spine consult. (Andersson Decl. ¶15.) An orthopedic consult was performed on October 27. (Andersson Decl. ¶17.) On the same day, Dutaret co-signed the note, and reported that surgery was indicated for the same day. (Andersson Decl. ¶18.) Andersson opines that Dutaret met the standard of care and did not cause or contribute to Plaintiff's injuries. (Andersson Decl. ¶21, 25.) He states that the initial neurology consultation was within the standard of care given the Plaintiff's symptoms, history of neuropathy, etc. (Andersson Decl. ¶23.) There was no further treatment provided by Dutaret until October 27, when the Plaintiff was to undergo surgical intervention. (Andersson Decl. ¶24.)

Again, while Plaintiff complains of Andersson's declaration, she did not provide any objections. (Cal. R. Ct. 3.1354.)

In opposition, Plaintiff also relies on Dr. Hixson. (Oppo. Lodged Exhibit 2.) Dr. Hixson is also board-certified in neurology. (Hixson Decl. ¶2.) The only mention of Dutaret is performing teleneurology services, and directed Reus to perform an exam on October 21. (Hixson Decl. ¶14.) Dutaret made a primary diagnosis of cervical myelopathy with additional considerations of spinal cord compression, d/t tumor or disc disease, transverse myelitis, and demyelinating disorder such as MS. (Hixson Decl. ¶14.) The only other mention of Dutaret is that she was back on shift on October 27, did not see Plaintiff, but signed off on the final documentation concerning pre-surgical neurology. (Hixson Decl. ¶24.) This was the first time Dutaret reviewed the cervical imaging, which confirmed cervical myelopathy and right cervical radiculopathy due to cervical spondylolisthesis with cord compression. (Hixson Decl. ¶24.)

Dr. Hixson opines that Dutaret's initial differential diagnosis inclusive of transverse myelitis and the orders for imaging were reasonable. (Hixson Decl. ¶26.) Where he distinguishes the claim is that an in-person exam is required for suspected spinal cord compression. (Hixson Decl. ¶26.) He contends that remote review is insufficient and that Dr. Dutaret failed to escalate a call for an in-person examination. (Hixson Decl. ¶26.) Dr. Dutaret had no plan should an MRI confirm compressive disease or if Plaintiff's condition worsened. (Hixson Decl. ¶26.)

Hixson states that there was a "systems failure" in the handling of Plaintiff's condition—attributable to CRMC and CEP America-California, by and through its agent neurologists and nurse practitioners. (Hixson Decl. ¶29.) Hixson contends that the failure to escalate after the October 22 MRI or at a minimum by October 24 when the MRI was confirmed was a substantial factor in causing Plaintiff's decline. (Hixson Decl. ¶30.) He states that spinal cord compression is a time-sensitive condition that requires urgent operative evaluation. (Hixson Decl. ¶31.) He opines that it was not wrong to continue testing and treatment for inflammatory myelitis, but surgical evaluation and consideration should have been escalated. (Hixson Decl. ¶31.) He concludes that "Defendants" fell below the standard of care and was a substantial factor in Plaintiff's injuries. (Hixson Decl. ¶32.)

The problem with the use of tele neurology and the “systems failure” is it is unclear how that is attributable to Dutaret, rather than CDCR.

Hixson also opines that there was a delay in urgency of getting Plaintiff seen by a neurosurgeon or orthopedic surgeon. Dutaret saw Plaintiff on October 21 and did not see Plaintiff again until October 27, the date of her surgery. Plaintiff’s case should have been escalated by October 22 or at a minimum, October 24. (Dixson Decl. ¶¶30.) But Dutaret saw Plaintiff on October 21. There is no indication that Dutaret saw Plaintiff between October 22-24, to escalate the issue.

The only specific allegations of Dutaret’s wrongful conduct is the failure to get an in-person exam by a neurologist, or come up with a plan should an MRI confirm compressive disease or if Plaintiff’s condition worsened. (Hixson Decl. ¶¶26.) Defendant contends that it is unclear whether an in person neurologist was available, but that is a factual question. Defendant does not address whether Dutaret should have come up with a plan depending on the MRI results. As such, there is a triable issue and the court denies the motion as to Dutaret.

1. CEP America-California

It is not clear as to the theory of liability as to Defendant CEP America-California (erroneously sued as Vituity). The complaints has two references to Vituity. First, Defendants were physicians, medical corps, health maintenance organizations, surgeons, surgical nurses and technicians, office personnel, physical therapists and paramedical professionals. (Complaint ¶¶4.) Second, Defendants were agents, servant, representative, partner, or employee of each of their co-Defendants. (Complaint ¶¶7.) Otherwise, there are general allegations of “Defendants.” (Complaint ¶¶10-12, 18, 20-21.)

Defendants do not identify any discovery responses from Plaintiff that clarify the theory of liability as to CEP America-California.

The only mention of CEP-America is in Andersson’s conclusions in his declaration—as a result, since Dutaret was associated with CEP America-California, there was no breach of the standard of care by Dutaret or CEP America-California or causation. (Andersson Decl. ¶¶26; see also Undisputed Fact (UF) no. 27.)

In response to UF no. 27, Plaintiff appears to concede that Dutaret was an agent of CEP America-California, and is liable under the doctrine of respondeat superior. Thus, the motion as to CEP America-California stands or falls with Dutaret. The motion is denied.

2.

CASE #	CASE NAME	HEARING NAME
RIC2001841	GERMAN VS LA FLOURE LLC	MOTION TO DEEM PLAINTIFF THE PREVAILING PARTY

Tentative Ruling:

When this motion was ruled on by the Court the first time, the Court applied CCP § 1032(a)(4)'s "prevailing party" definition and found that since Plaintiff had a net monetary recovery, it was the prevailing party on the wage and hour complaint. (Declaration of Jonathan P. Lacour, Exhibit 3, p. 3.) On appeal, the Court found that the "prevailing party" definition under CCP § 1032 did not apply to Labor Code §§ 218.5, 226, and 1194, which are applicable here. (Id. at pp. 6 and 9-10.) The Court found that a "holistic and pragmatic approach that assesses the extent to which a party achieved its overall litigation objectives as well as the underlying purposes that the attorneys' fee provision seeks to achieve" is applied to determine which party is the prevailing party. (Id. at p. 7.) "Where a plaintiff achieves less than complete success on a claim that includes the right to recover attorney's fees, making the pragmatic determination of who 'prevailed' involves a balancing of varied and subtle factors, a task that the trial judge is uniquely and qualified to perform." (Id. at 10.) "A court should assess what was really 'in dispute' at the outset of the case and whether circumstances shifted before significant litigation costs were incurred." (Id.) Net monetary recovery is an important factor. (Id.) However, it is not always determinative. (Id.) The fact that a plaintiff does not recover everything they sought is seldom a sufficient reason to find they did not prevail for purposes of an attorney's fees award. (Id.) The Court is to liberally construe remedial provisions of the Labor Code with an eye to benefiting employees because doing otherwise could discourage meritorious wage and hour claims from being brought. (Id.) The Court rejected Defendants' assertion that the trial court must determine that there is no prevailing party. (Id. at p. 11.)

The Court points out that "where a plaintiff joins separate statutory claims, each of which entitles the prevailing party to an award of attorney's fees, the court must determine the prevailing party separately as to each claim such that 'there can be two different prevailing parties under separate statutes in the same action.'" (Id. at 9.) The Court states that because Plaintiff filed two complaints that were consolidated for trial, the Court could find that Plaintiff is the prevailing party under the wage and hour claims and not the FEHA claims because different statutes for attorney's fees apply. (Id.) It found that the determination that Defendants were the prevailing party on the FEHA claims was correct.

Based on this finding, a possible option in this matter is that the Court finds that the Plaintiff is the prevailing party under some of the wage and hour claims, which would entitle her to some attorneys' fees under the applicable Labor Code sections. (Id. at p. 9.) It is also possible for the Court to determine that there is no prevailing party. (Id. at p. 7.) Plaintiff was awarded damages under most of her wage and hour claims. She was awarded \$176 in her claim for failure to minimum wages (Labor Code § 1194). (Statement of Decision p. 19-20.) She was awarded \$176 in liquidated damages pursuant to Labor Code § 1194.2 for unpaid off-the-clock work. (Id. at p. 20.) She was

awarded \$689 for meal period violations and \$819 for rest period violations. (Id. at 23.) She was awarded \$312 for unpaid overtime payments. (Id. at 23.) She was awarded \$3,120 for waiting time penalties under Labor Code § 203. (Id. at 25.) She was awarded \$750 in penalties for failure to provide accurate wage statements under Labor Code § 226. (Id. at p. 26.) She was also awarded \$4,000 in penalties under Labor Code § 1174 for failure to maintain payroll records. The Court found she was entitled to \$1,552.80 in interest on the wage and hour violations. (Id. at p. 29.) The total damages awarded were \$11,594.80. (Id. at 30.)

Plaintiff argues that the first element of the holistic test applied by the Appellate Court has been met because her litigation objective was met with this award – satisfying the first element of the test the Court of Appeals determined was applicable. She contends that she obtained an award in the majority of her wage and hour claims. She argues that the amount awarded was roughly the same amount sought by Plaintiff at trial. She points to a brief filed after trial but before a statement of decision had been executed by the Court, which seeks almost the same amount she was awarded. (Exhibit 1 to Jonathan P. Lacour's Declaration.) Defendant argues that this amount was not Plaintiff's litigation objective because in her wage and hour complaint, she sought \$200,000. It asserts that she received a fraction of this amount sought. Due to this, Defendant argues that Plaintiff's litigation objective was not reached.

In determining whether a party is a prevailing party under the holistic test provided by the Appellate Court, the trial court is to compare the relief awarded with the party's demands on those same claims and their litigation objectives "as disclosed by the pleadings, trial briefs, opening statements, and similar sources." (*Hus v. Abbara* (1995) 9 Cal.4th 863, 876.) While the pleading does indicate that Plaintiff sought damages in an amount no less than \$200,000, in the Joint Pretrial Statement filed on 1/16/24 and a brief filed before the statement of decision was executed by the Court (Request for Statement of Decision), Plaintiff sought only approximately \$650 more (without prejudgment interest applied) than what was awarded by the Court. As such, while the Complaint does seek \$200,000, there appears to have been a shift in Plaintiff's litigation objective. Under this new objective, Plaintiff accomplished substantially all of her litigation objectives. She prevailed on nearly all of her wage and hour claims and obtained nearly the amount she represented to the Court that she was entitled to before trial. The Appellate Court stresses that the failure to recover everything sought in the complaint is seldomly a sufficient reason to find that a party did not prevail for purposes of an attorney's fee award. (Declaration of Jonathan P. Lacour, Exhibit 3, p. 10.) Since the Plaintiff prevailed on most of her wage and hour claims and obtained nearly the exact amount sought in her pretrial briefs, it appears that Plaintiff obtained her litigation objective.

The second part of the holistic test appears to have been met and the motion should be granted. The second part looks at the underlying purpose that the attorney's fees provision at issue seeks to achieve. (Id. at p. 7.) Under Labor Code § 1194(a), reasonable attorneys' fees are recoverable for "any employee receiving less than the legal minimum wage or the legal overtime compensation applicable to the employee . . ." Labor Code § 218.5(a) allows for the recovery of attorney's fees by the prevailing party for any action brought for the nonpayment of wages. Labor Code § 226(h) allows

an employee to recoup attorney's fees if they are successful in an action for an employer's failure to provide accurate wage statements. Plaintiff prevailed on her claims for failure to pay minimum wages, failure to maintain accurate payroll records, failure to pay overtime compensation, and waiting time penalties, which all allow for recovery of attorney's fees under Labor Code §§ 218.5, 226, and 1194. (Labor Code §§ 218.5, 226, and 1194; see *Naranjo v. Spectrum Security Services, Inc.* (2022) 13 Cal.5th 93, 112.) Allowing the recovery of attorney's fees and costs under Labor Code §§ 218.5, 226, and 1194:

promotes the Legislature's clear priorities in creating procedures to assure that California employees are properly compensated. "[T]he prompt payment of wages due an employee is fundamental public policy in this state." [Citation omitted.] To implement this policy, the Labor Code creates a comprehensive remedial scheme designed to protect and favor employees attempting to collect compensation that is due them. Remedial provisions, in particular, are to be liberally construed with an eye to benefiting employees and promoting their protection.

Granting Plaintiff's request to be deemed the prevailing party appears to be consistent with the underlying purpose of the attorney's fees provision at issue because Plaintiff is an employee attempting to recoup unpaid wages. Due to this, the Court grants the motion.